

The Advocates/Bar Association Affiliation Rules, 1985

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State of Bihar - Act

The Advocates/Bar Association Affiliation Rules, 1985

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The Advocates/Bar Association Affiliation Rules, 1985

Rule THE-ADVOCATES-BAR-ASSOCIATION-AFFILIATION-RULES-1985 of 1985

Published on 24 March 1993

Commenced on 24 March 1993

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The Advocates/Bar Association Affiliation Rules, 1985

Published vide Notification No. Bihar Gazette, Part 2, dated 24.3.1993

Whereas the Bar Council is of the opinion that it is necessary and expedient for an unified Bar in the State and for furthering better links with the Advocates/Bar Associations, the following rules are framed for the Affiliation of the Advocates/Bar Association:

(a) These rules shall be called: The Advocates/Bar Association Affiliation Rules, 1985.

(b) They shall extend to the whole of Bihar.

1.

Definition.

- In these rules:

(a)

"Association" means a body of Advocates having at least 50 Members, if the Association is functioning at the District Head quarter and in any other case having at least 25 Members provided that the Bar Council may for good and sufficient reasons, relax the conditions relating to number of Members in respect of the Association.

(b)

"Council" means the Bar Council of Bihar.

(c)

"Advocate" means the legal practitioner whose name appears on the Roll of Advocates maintained by the State Bar Council.

(d)

"Unit" will mean Patna and Ranchi Benches of the High Court, District, Sub-Division Income-Tax-Sales Tax and Labour Tribunal Units at Patna, District or Sub-Divisional Head quarter.

2.

Affiliation.

- In these rules:

(a)

Every Association desirous of affiliation may apply for the affiliation on the prescribed form (Schedule I) alongwith an affiliation fee of Rs. 1000/- for District Bar Association and Rs. 500/- for Sub-Divisional Bar Association. A renewal fee of Rs. 500/- for District Bar Association and Rs. 250/- for Sub-Divisional Bar Association annually shall be payable by 30th April, each year to the Bar Council for continuing the affiliation. [Fees revised w.e.f. 1.4.2005]

Provided that affiliation will be accorded at one unit to only one Association, which has the largest number of members on the date of affiliation.

(b)

The Association shall forward to the Council the names of its members and also the names of the office-bearers every year alongwith the application for renewal in (Schedule II).

3.

(a)

Such affiliated Association shall be under obligation to keep a vigil over the professional activities of the members of profession and shall promptly inform the Council about any Advocate committing breach of the rules of professional standards and etiquette or of any other misconduct which in the opinion of its Executive Committee or the General Body is derogatory of the profession or the dereliction of his duties towards his client or fellow members and the Council may thereupon take such action against the Advocate as deemed appropriate in the circumstances.

(b)

The Council shall keep the affiliated Association informed of every important decisions taken or resolutions passed by it or by the Bar Council of India and the affiliated Association shall, to the best of its capacity, carry out all the directions and instructions issued by the Council from time to time.

4.

Disaffiliation.

- The Council may disaffiliate any Association on any of the following grounds:

(a)

If any Association fails to pay the renewal fee by July 31,

(b)

If the Association deliberately or willfully disobeys or does not carry out the directions and instructions as mentioned above,

(c)

The number of members of the Association falls below the prescribed limit,

(d)

The annual election of the Associations is not held in accordance with their rules and in spite of the request of the Council,

(e)

If any dispute among the office-bearers of the Bar Association after election arises, the matter should be referred to the Chairman of the Bar Council of Bihar for consideration, or

(f)

For any other reasons for which the Bar Council of Bihar may decide from time to time.

I

Application for Affiliation or Registration of Association under the Bihar Advocates' Welfare Fund Act

1.

Name of the Association

:

2.

Address

:

3.

Name of President

:

4.

Name of General Secretary

:

5.

Strength of Association

:

6.

Amount paid by Draft/Cash (if paid by Draft No., date and name of Bank at Patna be mentioned. The draft be drawn in favour of Bihar State Bar Council)

:

Copy of Rules of the Association

:

Signature of Secretary

Signature of President

(Seal)

Schedule-II

Application for Renewal of the Association

1.

Name of the Association

:

2.

Address

:

3.

Name of President (with Contact No.)

:

4.

Name of Secretary (with Contact No.)

:

5.

Strength of Association

:

6.

Registration No.

:

7.

Amount paid by draft/cash

:

8.

Name of office-bearers (With Contact No.) (Enclose list if required)

:

Signature of Secretary

Signature of President

(Seal)

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